WESLEY MUTOWO
versus
ALLEN T. MUKUHWA
(In his capacity as Executor for Estate Late Martha Mukuhwa DMRE52/24)
and
CITY OF MUTARE
and
MASTER OF THE HIGH COURT OF ZIMBABWE

HIGH COURT OF ZIMBABWE
SIZIBA J
MUTARE, 16 February 2026

OPPOSED MOTION (*Ex tempore judgment*)

Applicant in person
Mr *C. Ndlovu*, for the 1st respondent
No appearance for the 2nd & 3rd respondents

SIZIBA J: This is an application for leave to appeal to the Supreme Court. The applicant applied under HCMTC184/25 to revive a court order that he claims to have obtained in 2006 against Martha Mukuhwa who is now late. He had cited the first respondent as the executor of the estate late Martha Mukuhwa. In terms of the court order sought to be revived, the late Martha Mukuhwa was to cede an immovable property to his names. On 3 November 2025, this court struck off the applicant's application for revival of the superannuated order on the basis that it was common cause that the estate of the late Martha Mukuhwa was unrepresented as the first respondent had been discharged from being the executor by the Master. His Letters of Administration have not been revived. Judgment in the matter sought to be appealed against was delivered *ex-tempore* in court. The applicant's assertion that the reasons for judgment were not pronounced in court for him to have done an oral application for leave to appeal is misleading. I agree that he has failed to explain why an oral application for leave to appeal was not made upon delivery of the judgment as required by the rules of this court.

I am not in agreement with Mr *Ndlovu*'s submission that the judgment of 3 November 2025 is unappealable. It is an interlocutory judgment which is appealable with leave of this court.

The applicant's grounds of appeal are badly drafted. This court will not be hard on him on that aspect as a self-actor. His complaint that this court did not decide his point *in limine* on lack of *locus standi* of the first respondent is without foundation. All the relevant points or issues were decided. Applicant's submission that the order that he seeks to revive has nothing to do with the late Martha Mukuhwa's estate is misleading. He is blowing hot and cold. He is the one who cited the first respondent and labelled him to be the executor of the estate of the late Martha Mukuhwa. He cannot enforce an order against a deceased estate which is not represented by an executor.

None of the grounds of appeal carry any merit. As if that is not enough, the relief sought in the draft Notice of Appeal is incompetent. By praying for the granting of the application when this court did not decide the merits of his application, he is making the Supreme Court a court of first instance rather than an appellate court. The whole application is misconstrued and the appeal is doomed to fail. Leave to appeal to the Supreme Court cannot therefore be granted. The application has no merit. The first respondent was needlessly dragged to court and made to incur costs. The applicant's failure to appreciate issues that are relevant is demonstrated by his averments that he wants to appeal to the Supreme Court as the High Court in Mutare is too familiar with this case. Moreover, the reference to the earlier rescission of judgment is also irrelevant to this application. In the result, the application is dismissed with costs at attorney and client scale.

Gonese & Ndlovu, 1st respondent's legal practitioners